

Court No. - 39

Case :- WRIT - C No. - 35827 of 2018

Petitioner :- Salman @ Mohd. Salman

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- U.C. Chaturvedi

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar,J.

Hon'ble Rajiv Joshi,J.

Heard Sri U.C. Chaturvedi, learned counsel for the petitioner, Sri A.K. Saxena, learned counsel for the respondent no.2 and the learned Standing Counsel for the respondents no.1 & 3.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 14.09.2018 whereby Rs.6,15,318/- is sought to be made from the petitioner towards electricity dues.

According to the petitioner he is willing to deposit the said amount if proper installments are fixed by the Court.

In our opinion, it is not the business of the High Court to fix the installments as it is a matter purely between the consumer and the Electricity Department and it is open for the petitioner to negotiate the terms of the installments with the Electricity Department.

We, therefore dispose of this writ petition with liberty to the petitioner to move an application before the respondent no.2, Executive Engineer, Pashchimanchal Vidyut Vitaran Nigam Ltd., Deoband, District Saharanpur under paragraph 6.14 of the U.P. Electricity Supply Code, 2005 with his offer of paying the entire amount in installments. If such an application is moved by the petitioner before the respondent no.2 within one week from today, the respondent no.2 shall take a decision on the petitioner's application in accordance with law within a period of one month thereafter.

Till such order is passed, it is provided that no coercive steps shall be taken against the petitioner for recovery of the amount in pursuance of the impugned recovery citation dated 14.09.2018.

Order Date :- 29.10.2018

N Tiwari